

File No.: EXP202308162

RESOLUTION OF

PROCEEDING OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 7, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons for the complaint are that the complainant, residing in ***LOCALIDAD.1, is a neighbor of the respondent and that the latter has two surveillance cameras on their property, one of which is directed towards the public road without prior administrative authorization, and the other is clearly directed towards the adjacent property owned by the complainant, without having authorized this circumstance.

Images showing the location of the cameras are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on July 17, 2023, the aforementioned complaint was forwarded to the respondent by postal mail, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery receipt in the file, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent has not responded to the transfer and request for information notified.

THIRD: On September 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On August 22, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

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FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on September 2, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On September 4, 2024, a letter was received from the complainant indicating that their complaint "no longer applies" because the cameras have been removed.

SEVENTH: On September 9, 2024, a letter of allegations was received from the respondent in which, in summary, the following considerations are made:

"I have received a notification of complaint from the AEPD with file number: EXP202308162 from the complainant A.A.A. who requests the removal of surveillance cameras on a property in ***LOCALIDAD.1.

For this reason, I am contacting you, as I do not own any properties of any kind in ***LOCALIDAD.1 nor cameras, so there must have been an error in the documentation submitted by the complainant, and I request that this complaint be annulled."

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The complainant filed a complaint with the AEPD stating that they are a neighbor of the respondent and that the respondent has two surveillance cameras on their property, one of which is directed towards the public road without prior administrative authorization, and the other is clearly directed towards the adjacent property owned by the complainant, without having authorized this circumstance. The installation of the cameras on the neighboring property of the complainant has been substantiated by the complainant providing images showing the location of the cameras.

On September 4, 2024, a letter was received from the complainant indicating that their complaint "no longer applies" because the cameras have been removed.

SECOND: The respondent, on September 9, 2024, states that they do not own any properties of any kind in ***LOCALIDAD.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants competence to initiate and resolve this procedure to the Director of the Spanish Agency for the Protection of Data.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to said Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data, indicating:

"‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment or combination, restriction, erasure or destruction;"

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

However, in this case, given the circumstances expressed by the parties, the complainant and the respondent, it is necessary to determine whether the respondent is responsible for said system.

III

Obligations regarding video surveillance

The processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of safeguarding the security of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the

processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR. "Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means."

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- Images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set out in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Agency for the Protection of Data provides access through its website

[<https://www.aepd.es>] to:

- the legislation on the protection of personal data, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in case of carrying out low-risk data processing, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

IV

Claims of the complainant and respondent

On September 9, 2024, a letter was received from the respondent indicating that they do not own any property in ***LOCALIDAD.1 and provides a list of the assets of

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your property and none appear in the locality where the cameras are located.

Therefore, in the present case, there is no evidence that reliably proves the ownership of the video surveillance system subject to these proceedings.

Consequently, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE THE WARNING to B.B.B., with NIF ***NIF.1, corresponding to File No.: EXP202308162

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm

resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.
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Mar España Martí

Director of the Spanish Agency for Data Protection

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